WHARF

FOOD
ITY
SPICED SHRIMP
COOKED CRABS
RAW BAR

OKED
Live Maine Lobsters
CRAB SALE
CRAB LEGS BLOW OUT
THAILAND BLUE CRABS SALE
Live Crabs

Recap

Drugs and Guns

Class 15: Possession, Enforcement, and Evidence

Criminal Law

Does What We're Doing Actually Work?

Retail cocaine prices fell **80%** (1981–2012)

Drug incarceration increased **10x** in the same period

. . .

The system's most resource-intensive enforcement strategy produced no measurable effect on the problem it was designed to address.

PART I: THE DOCTRINE

United States v. Jenkins (3d Cir. 1996)

Jenkins — The Facts

- 1:30 AM, Philadelphia — officers chase a man with a gun into apartment C-107
- Find Jenkins on couch in boxer shorts next to:
  - 55.3g cocaine, scales, three loaded firearms, packaging materials
- No cocaine residue on Jenkins or his hands
- No attempt to hide or destroy anything; full cooperation
- Building manager: Jenkins was “in and out”

Jenkins — Holding

> "Proximity alone is not enough, no matter how near that proximity is."

The government had only a **"snapshot"** — no evidence of dominion or control.

. . .

Dissent: "Only trusted members of the operation would be permitted entry into the apartment."

Louisiana v. Gerald Manchip White (La. 2025)

White — The Facts

- Convicted felon lives with wife, adult daughter, and son
- Parole officers find three guns:
  - .22 revolver in wife's dresser drawer (her belongings)
  - 9mm under mattress in daughter's room (boyfriend's gun, brought hours before)
  - 9mm in couch cushions (son's gun — son was shot during a home invasion weeks earlier)
- Defendant told parole officer "the gun" was still in the house

White — Holding

Awareness alone is insufficient to prove constructive possession.

Both convictions reversed.

. . .

Weimer, C.J., concurring: A contrary ruling would "force on them the choice of exercising their constitutional rights or requiring a father/husband to live off the premises."

U.S.C. § 922(g)

922(g) is the federal law prohibiting specific categories of individuals from possessing, shipping, or receiving firearms or ammunition.

Known as the "prohibited persons" statute, it commonly covers felons, users of controlled substances, and those with domestic violence convictions.

§ 922(g) Demographics

56.2% of federal felon-in-possession defendants are Black

13% of the U.S. population is Black

. . .

Project Exile (Richmond): routed gun cases to federal court for longer sentences

~**90%** of defendants were African American

No detectable effect on crime.

Watson v. United States (2007)

Watson — The Facts

- Watson wanted a gun
- Government informant suggested he pay in narcotics
- Watson gave **24 doses of OxyContin** for a **.50 caliber semiautomatic pistol**
- Charged with **"using"** the pistol under § 924(c)

Watson — Holding

Trading drugs **for** a gun ≠ “using” a firearm

. . .

But trading a gun **for** drugs = “using” a firearm (*Smith*)

. . .

Ginsburg, concurring: Both are wrong. “Use” should mean **use as a weapon** — not use as currency.

The Angelos Problem

Weldon Angelos — first-time offender

Three marijuana sales while carrying a firearm

. . .

Sentence: 55 years

§ 924(c): 5 + 25 + 25, all consecutive

. . .

Judge Cassell: **“unjust, cruel, and even irrational”**

More time than for hijacking an airplane or second-degree murder.

PART II: THE EVIDENCE

Drug Enforcement: The Record

- Cocaine prices ↓ **80%** while incarceration ↑ **10x**
- **No relationship** between state imprisonment rates and drug use (Pew)
- Treatment is **7–10x** more cost-effective than interdiction (RAND)

. . .

What deters: certainty of apprehension

What doesn't: severity beyond moderate thresholds

The Iron Law of Prohibition

Enforcement → suppliers shift to **more potent, more concealable** substances

. . .

Opium → heroin

Coca leaves → crack cocaine

Prescription opioids → **fentanyl**

. . .

The enforcement strategy designed to reduce harm drives the market toward more dangerous products.

What Reduces Drug Harms

- **MAT** (methadone, buprenorphine): mortality ↓ **50%** — $1 invested → $4–7 in reduced crime costs
- **Syringe services:** HIV transmission ↓ **40–60%** — no increase in drug use
- **Naloxone distribution:** overdose deaths ↓ **27–46%**

What Reduces Gun Violence

- **Permit-to-purchase:** Missouri repeal → homicides ↑ **25%**; Connecticut adoption → ↓ **40%**
- **Focused deterrence:** 22 of 24 evaluations found reductions (~**26%**)
- **Universal background checks alone:** no significant effect

. . .

Project Exile: no independent effect on homicides. 90% of defendants were Black.

Decriminalization Alone Doesn't Work

Oregon (2020): decriminalized without treatment infrastructure

→ repealed in 4 years

. . .

Portugal (2001): decriminalized **with** massive services investment

→ HIV ↓, overdose ↓, incarceration ↓

. . .

The difference was not the decriminalization — it was the infrastructure.

Ramsey County

Stopped prosecuting cases from pretextual traffic stops

- Equipment stops ↓ **86%**
- Searches ↓ **92%**
- Stops of Black drivers ↓ **66%**

. . .

Crime: no increase. **Gun seizures:** no change.

The Question

Are we capable of **building something different**?